

02/02/2024

Dr Richard McLean
crystalandbarran@gmail.com

By email: crystalandbarran@gmail.com

Dear Dr McLean

YouTube videos referring to genU employees

It has been brought to our attention that you have again recorded and published on YouTube phone conversations with a genU employee, Carol Cope, without her consent. We acknowledge the intent of you publishing the phone conversation to YouTube. However, we have never given you our consent to publicly name and identify genU or our employees.

genU takes the safety and wellbeing of its staff very seriously. We believe in fostering open communication with all our clients and staff and taking necessary steps to ensure a secure and supportive working environment for all.

Your conduct has breached your NDIS Service Agreement with us. We remind you of your obligations under clause 1 of the Agreement where you have agreed to *"treat our staff with courtesy and respect"* and to *"help us provide a healthy and safe workplace for our staff."* We also wanted to highlight our Telephone and Email Etiquette agreement provided to you on 14 December 2023, which provides that *"we do not give consent for any of our interactions to be made public."*

Please also note that recording and publishing private conversations without the other party's consent breaches the *Surveillance Devices Act 1999* (Vic).

We stress that our dedicated staff are here to provide you with the level of care and service under your NDIS plan. It is important that they can continue to assist you without risk to their wellbeing.

We ask that you please rename the caption on the YouTube video *"carol.cope@genu.org.au GenU support co/n evidence funds additional to not inclusive of ndis plan"* to a caption that does not identify genU or genU staff, such as *"previous support co/n evidence funds additional to not inclusive of ndis plan"*.

We look forward to your understanding and assistance.

Yours faithfully



Travis Heeney
Chief Operating Officer
Karingal St Laurence Ltd